ours p.1 (red) over filed p.1 (blue)

No. 22-2830

No. 22-2830

In the United States Court of Appeals for the Seventh Circuit

IN THE UNITED STATES COURT OF APPEALS
FOR THE SEVENTH CIRCUIT

NORBERTO TORRES,

Norberto Torres,

Plaintiff-Appellant,

Plaintiff-Appellant,

v.

KENT BROOKMAN, et al.,

Kent Brookman, *et al.*,

Defendants-Appellees.

Defendants-Appellees.

On Appeal ~~from the United States District~~ Court for the Southern District of Illinois

On Appeal from the United States District Court for the Southern District of Illinois

No. 3:19-cv-00248 (Hon. Stephen P. McGlynn)

No. 3:19-cv-00248; Hon. Stephen P. McGlynn

BRIEF OF APPELLANT

BRIEF OF APPELLANT

Samuel Weiss
RIGHTS BEHIND BARS
416 Florida Ave., N.W.
Washington, DC 20001
(202) 455-4399
sam@rightsbehindbars.org

Robert Reeves Anderson
ARNOLD & PORTER KAYE SCHOLER LLP
1144 Fifteenth St., Suite 3100
Denver, CO 80202
(202) 942-1000

Matthew L. Farley
ARNOLD & PORTER KAYE SCHOLER LLP
601 Massachusetts Ave., N.W.
Washington, DC 20001
(202) 942-5000
matthew.farley@arnoldporter.com

Counsel for Norberto Torres

Samuel Weiss
RIGHTS BEHIND BARS
416 Florida Ave., N.W.
Washington, DC 20001
(202) 455-4399

Robert Reeves Anderson
ARNOLD & PORTER KAYE SCHOLER LLP
1144 Fifteenth St.
Suite 3100
Denver, CO 80202
(202) 942-1000

Matthew L. Farley
ARNOLD & PORTER KAYE SCHOLER LLP
601 Massachusetts Ave., N.W.
Washington, DC 20001
(202) 942-5000

Counsel for Norberto Torres

March 21, 2024

TABLE OF CONTENTS

RULE 26.1 DISCLOSURES i

TABLE OF AUTHORITIES vi

JURISDICTIONAL STATEMENT 1

ISSUE PRESENTED 1

INTRODUCTION 1

STATEMENT OF THE CASE 3

I. Factual Background 3

A. Mr. Torres receives the first disciplinary report, which is promptly expunged 3

B. Mr. Torres is confined in a moldy, contaminated cell for three months . . 3

II. Proceedings Below 4

SUMMARY OF ARGUMENT 7

STANDARD OF REVIEW 5

ARGUMENT 5

I. The district court's summary judgment opinion misstated the law and misapplied the summary judgment standard 7

A. The district court erred by assessing the amount of time that Mr. Torres spent in segregation relative to his sentence 7

B. The district court further erred by requiring Mr. Torres to prove physical or mental harm because of his confinement 8

CONCLUSION 9

CERTIFICATE OF COMPLIANCE 10

CERTIFICATE OF SERVICE 10

TABLE OF AUTHORITIES

Cases: **Page(s)**

Cases **Page(s)**

Basemore v. Brookman,
No. 16-cv-562-SMY-RJD, 2018 WL 1366587
(S.D. Ill. March 16, 2018) 4, 23

Brooks v. Warden,
800 F.3d 1295 (11th Cir. 2015) 25

Cartwright v. City of Chicago,
450 F. App'x 539 (7th Cir. 2011) 19

DeSpain v. Uphoff,
264 F.3d 965 (10th Cir. 2001) 25

Farmer v. Brennan,
511 U.S. 825 (1994) 18

Fiorito v. Segal,
No. 20-1559, 2022 WL 4809726
(7th Cir. Oct. 3, 2022) 26

Gaston v. Coughlin,
249 F.3d 156 (2d Cir. 2001) 25

Gates v. Cook,
376 F.3d 323 (5th Cir. 2004) 25

Gillis v. Litscher,
468 F.3d 488 (7th Cir. 2006) 12, 13

Hardaway v. Meyerhoff,
734 F.3d 740 (7th Cir. 2013) 3, 13, 14

Hoskins v. Lenear,
395 F.3d 372 (7th Cir. 2005) 14, 15, 16

Isby v. Brown,
856 F.3d 508 (7th Cir. 2018) 3

Wright v. McMann,
387 F.2d 519 (2d Cir. 1967) 25

Xiong v. Bd. of Regents of Univ. of Wis. Sys.,
62 F.4th 350 (7th Cir. 2023) 19

Young v. Bailey,
No. 8:21-cv-389, 2022 WL 797472
(M.D. Fla. Mar. 16, 2022) 24

Young v. Quinlan,
960 F.2d 351 (3d Cir. 1992) 25

Statutes:

Constitutional Provisions

U.S. Const. amend. VIII 1, 3, 9, 11, 12

U.S. Const. amend. XIV 9, 11, 12, 18, 25, 26

Statutes

Rules:

28 U.S.C. § 1291 1

Fed. R. App. P. 4(c) 1

28 U.S.C. § 1331 1

42 U.S.C. § 1983 ..... 1, 2, 3

JURISDICTIONAL STATEMENT

Plaintiff-appellant sued Defendants-appellees under 42 U.S.C. § 1983 for violating his federal rights under the Fourteenth Amendment to the United States Constitution. The district court had subject-matter jurisdiction under 28 U.S.C. § 1331. The district court entered final judgment on September 15, 2022. SA.11.[1] Appellant timely filed a notice of appeal under Federal Rule of Appellate Procedure 4(c) on October 14, 2022, and the notice of appeal was docketed on October 17, 2022. A.181-83. This Court has jurisdiction under 28 U.S.C. § 1291.

ISSUE PRESENTED

Whether the district court erred in concluding that Mr. Torres's months-long segregative confinement in a cell riddled with feces, mold, mildew, and insects did not constitute an atypical and significant hardship compared to ordinary prison life sufficient to trigger procedural protections under the Due Process Clause.

INTRODUCTION

Appellant Norberto Torres's due process rights were violated when Appellees Brookman and Hart ignored his requests to conduct a procedurally proper disciplinary hearing and then sentenced him to three months of segregation in inhumane conditions. Mr. Torres spent 90 days in a cell covered in mildew and

[1] Citations to SA.### are to the Short Appendix appended to this brief. Citations to A.### are to the separately bound Appendix.

Mr. Torres asked for cleaning supplies to clean the cell himself but was never provided with any.

After Mr. Torres was released from segregation, a grievance committee recognized that Mr. Torres's hearing was conducted improperly and expunged the infraction from his record.

Recognizing that his rights had been violated, Mr. Torres sued Brookman and Hart under 42 U.S.C. § 1983 to enforce the rights guaranteed to him by the Fourteenth Amendment's Due Process Clause. Prisoners have a constitutional right to due process before they can be deprived of "life, liberty, and property." *Isby v. Brown*, 856 F.3d 508, 524 (7th Cir. 2018). Specifically, prisoners retain a liberty interest in avoiding conditions that "impose[] atypical and significant hardship on the inmate in relation to the ordinary incidents of prison life." *Sandin v. Conner*, 515 U.S. 472, 484 (1995). Prisoners alleging a due process violation, therefore, must first show that correctional officers did not follow proper process in sentencing them to segregation, and second, that the conditions of that confinement constitute an "atypical and significant hardship." On summary judgment, the district court must consider "the combined import of the duration of the segregative confinement *and* the conditions endured." *Hardaway v. Meyerhoff*, 734 F.3d 740, 743 (7th Cir. 2013).

The dispositive issue on appeal is whether three months in a feces-ridden, moldy, insect-infested segregation cell rises to the level of an "atypical and significant hardship." If so, the case should move forward to permit Mr. Torres the opportunity to present his claim to a jury. This Court should reverse the decision below and permit this case to proceed to trial.

STATEMENT OF THE CASE

I. Factual Background

Mr. Torres is serving a 60-year sentence in the Illinois Department of Corrections. Throughout the events of this case, Mr. Torres was imprisoned at Menard Correctional Center in Menard, Illinois. Defendants Brookman and Hart both served on the Adjustment Committee at Menard, responsible for conducting disciplinary hearings and sentencing prisoners to extra punishments for any infractions.

A. Mr. Torres receives the first disciplinary report, which is promptly expunged

On March 13, 2017, Mr. Torres received Inmate Disciplinary Report Number 201700365/1-MEN ("the 365 Ticket"). A.142-43. While transferring a different prisoner to another facility, the Department of Corrections allegedly discovered a "Latin Folk questionnaire" filled out by Mr. Torres. A.142-43. Defendants Brookman and Hart convened a hearing for the 365 Ticket on March 15, 2017. A.142. Mr. Torres requested a witness for the hearing, but Brookman and Hart did not produce him. A.177. After a hearing that lasted no more than 15 minutes, A.104, Defendants expunged the 365 Ticket. A.142.

B. Mr. Torres is confined in a moldy, contaminated cell for three months

Being placed in segregation significantly restricted Mr. Torres's life. He was not permitted to watch television, access a phone, or possess electronics. A.095-96. When

Mr. Torres's hearing was not in accordance with Department regulations.

II. Proceedings Below

Mr. Torres brought this action *pro se* on February 28, 2019. A.005. Mr. Torres sued Defendants Brookman, Hart, and Lashbrook in their individual and official capacities for "1. Cruel and unusual punishment 2. Violation of the due process [and] 3. Conditions of confinement." A.011.

On preliminary review, the district court divided Mr. Torres's claims into two counts: (1) a Fourteenth Amendment procedural due process claim against Defendants Brookman and Hart, and (2) an Eighth Amendment claim against Chief Administrative Officer Lashbrook for cruel and unusual punishment.

All three defendants moved for summary judgment on the ground that Mr. Torres had not properly exhausted his claims. A.038. The district court granted summary judgment as to Mr. Torres's Eighth Amendment claim against Officer Lashbrook but allowed Mr. Torres's Fourteenth Amendment claim to proceed against Defendants Brookman and Hart. A.046. After discovery, the remaining Defendants again moved for Summary Judgment. A.047-49. Defendants claimed that there was no due process violation because Mr. Torres was never deprived of a

failed to offer evidence that his conditions in segregation were atypical and significant.

The district court committed three legal errors, each of which justifies reversal. First, the district court incorrectly relied on the length of Mr. Torres's sentence to conclude that his 90 days in segregation could not amount to an atypical and significant hardship. Second, the district court improperly imported an element from an Eighth Amendment conditions of confinement claim to Mr. Torres's Fourteenth Amendment Due Process claim by faulting him for not putting forth evidence of a substantial risk of harm. Third, the district court did not construe all facts in a light most favorable to Mr. Torres and ignored undisputed material facts in the record. With regard to the substance of Mr. Torres's claim, this Court should reverse because Mr. Torres did offer "evidence that would allow a jury to determine that the conditions in segregation deviated substantially from ordinary conditions of his confinement." SA.009. Evidence of prolonged exposure to human waste has consistently been sufficient to deny summary judgment. Mr. Torres presented evidence of that horrid condition—and much more.

STANDARD OF REVIEW

This Court reviews *de novo* a district court's grant of summary judgment. All facts must be construed in a light favorable to Mr. Torres, drawing all reasonable inferences in his favor. *Lisle*, 933 F.3d at 716.

ARGUMENT

Because Brookman and Hart violated Mr. Torres's due process rights at his second hearing, Mr. Torres was confined in a cell for three months that was infested

ARGUMENT

Because Brookman and Hart violated Mr. Torres's due process rights at his second hearing, Mr. Torres was confined in a cell for three months that was infested with mold, mildew, insects, and rust, and consistently flooded with sewage water containing human waste. Mr. Torres asked for, and was denied, cleaning supplies to remedy the situation himself. These conditions were "atypical and significant" under Seventh Circuit precedent and implicate Mr. Torres's liberty interests.

The Constitution does not always "create an interest in avoiding transfer within a correctional facility." *Townsend v. Fuchs*, 522 F.3d 765, 771 (7th Cir. 2008) (citing *Wilkinson v. Austin*, 545 U.S. 209, 222 (2005)). The Supreme Court has determined, however, that "that the Fourteenth Amendment provides to inmates a liberty interest in avoiding placement in more restrictive conditions, such as segregation, when those conditions pose an atypical and significant hardship when compared to the ordinary incidents of prison life." *Id.* (citing *Sandin*, 515 U.S. at 484). This "atypical and significant hardship" does not need to rise to the level of an Eighth Amendment violation to "trigger[] procedural requirements." *Gillis v. Litscher*, 468 F.3d 488 (7th Cir. 2006). Determining whether conditions rise to this level is a "fact intensive inquiry," and is therefore ultimately a fact question for the jury. *Gillis*, 468 F.3d at 492. In doing so, courts must look at "the combined import of the duration of the segregative confinement and the conditions endured." *Marion v. Columbia*, 559 F.3d 693, 697 (7th Cir. 2009). Neither is dispositive, as "relatively short terms of segregation" can still "give rise to a liberty interest in their avoidance." *Wilkinson*, 545 U.S. at 224. The Constitution does not always "create an interest in avoiding transfer within a correctional facility." *Townsend v. Fuchs*, 522 F.3d 765, 771 (7th Cir. 2008) (citing *Wilkinson v. Austin*, 545 U.S. 209, 222 (2005)). The Supreme Court has determined, however, that the Fourteenth Amendment provides to inmates a liberty interest in avoiding placement in more restrictive conditions, such as segregation, when those conditions pose an atypical and significant hardship when compared to the ordinary incidents of prison life. *Id.* (citing *Sandin*, 515 U.S. at 484). This "atypical and significant hardship" does not need to rise to the level of an Eighth Amendment violation to "trigger[] procedural requirements." *Gillis v. Litscher*, 468 F.3d 488 (7th Cir. 2006). Determining whether conditions rise to this level is a "fact intensive inquiry," and is therefore ultimately a fact question for the jury. *Gillis*, 468 F.3d at 492. In doing so, courts must look at "the combined import of the duration of the segregative confinement and the conditions endured." *Marion v. Columbia*, 559 F.3d 693, 697 (7th Cir. 2009). Neither is dispositive, as "relatively short terms of segregation" can still "give rise to a liberty interest in their avoidance." *Wilkinson*, 545 U.S. at 224.

his witness amounted to a denial of [Mr. Torres's] due process rights." SA.008. The only question before this Court, therefore, is whether the evidence on the record would have permitted a jury to decide that the conditions of Mr. Torres's confinement rose to the level of an atypical and significant hardship. The district court erred in holding that Mr. Torres's claim could not meet this standard.

I. The district court's summary judgment opinion misstated the law and misapplied the summary judgment standard

A. The district court erred by assessing the amount of time that Mr. Torres spent in segregation relative to his sentence

The district court's assertion that "Courts have dismissed due process claims based on relatively short periods of disciplinary segregation without inquiry into the specific conditions of confinement," misstates the law on segregative confinement claims. SA.008-09 (citing *Marion*, 559 F.3d at 698; *Townsend*, 522 F.3d at 766; *Hoskins v. Lenear*, 395 F.3d 372, 374-75 (7th Cir. 2005); *Thomas v. Ramos*, 130 F.3d 754, 761 (7th Cir. 1997)). This Court has made clear that district courts must examine "the combined import of the duration of the segregative confinement and the conditions endured." *Hardaway*, 734 F.3d at 743 (first emphasis added). This Court has "found that, depending on the conditions of confinement and whether there were any additional punishments, a period of segregation considerably shorter than four months may" constitute an atypical and significant hardship. *Lisle*, 933 F.3d at 721 (citing *Kervin v. Barnes*, 787 F.3d 833, 836 (7th Cir. 2015)).

In *Marion*, while 240 days of segregation was insufficient on its own to be an "atypical and significant" condition, the case was remanded for further fact finding into the conditions of that confinement. *Id.* at 698-99. In *Townsend*, the holding turned not on the fact that the plaintiff was in segregation for only 59 days, but rather on the fact that the segregative confinement was administrative rather than disciplinary. *Lekas v.*

goes into consideration of liberty interests includes the length of the plaintiff's sentence as a variable. And yet, the district court still based its decision on its assessment that Mr. Torres's time in segregation was "miniscule" in comparison to his full sentence. But a prisoner serving a 60-year sentence has no less of a constitutional liberty interest than someone serving a six-day sentence. Whether or not conditions rise to the level of atypical and significant does not depend on the length of a prisoner's sentence. To determine if certain conditions rise to a protectable liberty interest, a jury decides whether they are atypical and significant "'in relation to the ordinary incidents of prison life.'" *Sandin*, 515 U.S. at 484; *see also Wilkinson*, 545 U.S. at 223-24. The fact that Mr. Torres was serving a 60-year sentence does not make the conditions he endured any less horrific, nor do they make the deprivation of his procedural rights any less redressable.

To the extent that the district court's opinion relied on its assessment that "[v]iewed in the context of Plaintiff's 60-year sentence, a three-month period in punitive segregation is a miniscule part of Plaintiff's imprisonment," SA.009, it cannot stand.

B. The district court further erred by requiring Mr. Torres to prove physical or mental harm because of his confinement

The district court again misconstrued the law when it faulted Mr. Torres for not alleging "that he suffered physical or mental harm or substantial risk to his health because of his three-month confinement in the cell." SA.009. There is no

of confinement under the Eighth Amendment require showing that the conditions exposed an inmate to "a substantial risk of serious harm." *Townsend*, 522 F.3d at 773 (citing *Farmer v. Brennan*, 511 U.S. 825, 847 (1994)). But claims alleging that a violation of a prisoner's due process rights resulted in an atypical and significant hardship have no such requirement.

CONCLUSION

Mr. Torres respectfully asks the Court to reverse the judgment below.

Dated: March 21, 2024

Respectfully submitted,

Samuel Weiss
RIGHTS BEHIND BARS
416 Florida Ave., N.W.
Washington, DC 20001
(202) 455-4399
sam@rightsbehindbars.org

s/ Matthew L. Farley
Matthew L. Farley
ARNOLD & PORTER
KAYE SCHOLER LLP
601 Massachusetts Ave., N.W.
Washington, DC 20001
(202) 942-5000
matthew.farley@arnoldporter.com

Robert Reeves Anderson
ARNOLD & PORTER
KAYE SCHOLER LLP
1144 Fifteenth St.
Suite 3100
Denver, CO 80202
(202) 942-1000

CONCLUSION

Mr. Torres respectfully asks the Court to reverse the judgment below.

Respectfully submitted,

s/ Matthew L. Farley
MATTHEW L. FARLEY
ARNOLD & PORTER KAYE SCHOLER LLP
601 Massachusetts Ave., N.W.,
Washington, DC 20001
(202) 942-5000
matthew.farley@arnoldporter.com

March 21, 2024

CERTIFICATE OF COMPLIANCE

The foregoing brief complies with the type-volume limitation of Circuit Rule 32(c). The brief contains 1,871 words, excluding those parts of the brief exempted by Federal Rule of Appellate Procedure 32(f).

This brief complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5)-(6) and Circuit Rule 32(b) because this brief has been prepared in a proportionally spaced typeface using Typst 0.15.0 in EB Garamond 14-point font.

s/ Matthew L. Farley
Signature

March 21, 2024
Date

The foregoing brief complies with the type-volume limitation of Circuit Rule 32(c). The brief contains 6,881 words, excluding those parts of the brief exempted by Federal Rule of Appellate Procedure 32(f). This brief complies with the typeface and type-style requirements of Federal Rule of Appellate Procedure 32(a)(5)-(6) and Circuit Rule 32(b) because this brief has been prepared in a proportionately spaced typeface using Microsoft Word 365 (2016) in Times New Roman 14-point font.

s/ Matthew L. Farley
Matthew L. Farley

CERTIFICATE OF SERVICE

Pursuant to Federal Rule of Appellate Procedure 25, I hereby certify that on March 22, 2024, I electronically filed the foregoing Brief of Appellant via the Court's CM/ECF system, and service was accomplished on counsel of record by that means.

s/ Matthew L. Farley
Signature

March 22, 2024
Date